

calling which they have just entered. Unless there is a sacred reverence for country, laws, and authority, society becomes confused, an abyss—an endless conflict of man versus man, group versus group.

All our moral powers will not suffice to save our infant republic from this chaos unless we fuse the mass of the people, the government, the legislation, and the national spirit into a single united body. Unity, unity, unity must be our motto in all things. The blood of our citizens is varied: let it be mixed for the sake of unity. Our Constitution has divided the powers of government: let them be bound together to secure unity. Our laws are but a sad relic of ancient and modern despotism. Let this monstrous edifice crumble and fall; and, having removed even its ruins, let us erect a temple to Justice; and, guided by its sacred inspiration, let us write a code of Venezuelan laws. Should we wish to consult the monuments of legislation, those of Great Britain, France, and the United States of North America¹ afford us admirable models.

Popular education should be the primary concern of the paternal love of Congress. Morality and enlightenment are the foundations of a republic; morality and enlightenment constitute our primary needs. From Athens let us take her Areopagus and her guardians of custom and law; from Rome, her censors and domestic tribunals; and, having effected a holy alliance of these moral institutions, let us revive in the world the idea of a people who, not content to be free and strong, desire also to be virtuous. From Sparta let us take her austere institutions; and, when from these three springs we have made a fountain of virtue, let us endow our republic with a fourth power having jurisdiction over the youth, the hearts of men, public spirit, good customs, and republican ethics. Let us establish an Areopagus to watch over the education of our youth and to promote national enlightenment, in order that it may purify every instance of corruption in the Republic and denounce its gratitude, selfishness, indifferent love of country, and idleness and negligence on the part of the citizens, that it may judge the first signs of corruption and of evil example, using moral penalties to correct violation of customs, even as criminals are punished by corporal penalties. Such action should be taken not only against that which conflicts with customs, but also against that which mocks them; not only against that which attacks them, but also against that which weakens them; not only against that which violates the Constitution but also against that which outrages public decency. The jurisdiction of this truly sacred tribunal should be effective with respect to education and enlightenment, but advisory only with regard to penalties and punishments. But its annals or registers containing its acts and deliberations, which will have effect, record the ethical precepts and the actions of citizens, should be the public books of virtue and vice. These books would be consulted for guidance by the people in elections, by the magistrates in their decisions, and by the judges in rendering verdicts. Such an institution, chimerical as it is,

appear, is infinitely more feasible than others which certain ancient and modern legislators have established with less benefit to mankind....

I pray you, Legislators, receive with indulgence this profession of my political faith, these innermost yearnings of my heart, these fervent pleas, which, on behalf of the people, I venture to place before you. I pray you, grant to Venezuela a government preeminently popular, preeminently just, preeminently moral; one that will suppress anarchy, oppression, and guilt—a government that will usher in the reign of innocence, humanity, and peace; a government wherein the rule of inexorable law will signify the triumph of equality and freedom.

Gentlemen: you may begin your labors, I have finished mine.

4. THE AGE OF VIOLENCE

"There is no good faith in America," wrote Bolívar in 1829, "nor among the nations of America. Treaties are scraps of paper; constitutions, printed matter; elections, battles; freedom, anarchy; and life, a torment." Many Spanish-American observers echoed Bolívar's cry of despair during the chaotic half-century that followed independence. A fiery Chilean liberal, Francisco Bilbao (1823–1865), subjected republican government in Latin America to a penetrating critique in his essay America in Danger, written in 1862.

The conquest of power is the supreme goal. This leads to the immoral doctrine that "the end justifies the means...." But since there are constitutional provisions that guarantee everyone his rights, and I cannot violate them, I invoke the system of "preserving the form."

If the Constitution declares: "Thought is free," I add: "within the limits established by law"—and since the law referred to is not the constitutional provision but one that was issued afterwards, I inscribe in it the exceptions of Págaro. "Thought is free," but there can be no discussion of dogma or exposition of systems that attack morality. And who is to judge? A commission or jury named in the last analysis by the authorities. And we have the colonial "censorship" reestablished under the guise of the freest institution of all, the jury. Sublime victory of duplicity! "But the form has been preserved."

The electoral power is the only power exercised by the "sovereign people," and it exercises this power not to make the laws but to select the

¹Francisco Bilbao, *La América en peligro* (Santiago de Chile, 1941), pp. 34–40. Excerpt translated by Benjamin Keen.

persons who will make them. Very well. The majority vote, then is the expression . . . of the popular will.

That is the basis of republican power, and that is why free and legitimate elections establish the legitimacy of power.

The election is free, it is said, but what if I control the election returns? What if I, the established power, name the inspector of the election returns, if the law permits one to vote twenty times a day in the same election? What if I dominate the elections and frighten my opponents away with impunity?

What happens then? Why, the government is perpetuated in office, and the popular will is flouted and swindled.

But "the form has been preserved," and long live free elections!

"The domicile is inviolable," but I violate it, adding: "save in the cases determined by law." And the "cases" are determined in the last analysis by the party in power.

"The death penalty in political cases is abolished," but I shoot prisoners because I consider that these are not "political cases"; and since I am the infallible authority I declare that these political prisoners are bandits, and "the form has been preserved."

The Executive can be accused before the Chamber of Deputies and is subject to impeachment for one year after leaving office.

But that Chamber has been selected by me, and functions for one year after my departure. The persons who must judge me are my employees, my *protégés*, my creatures, my accomplices. Will they condemn me? No. Nor will they dare to accuse me. I am vindicated, and the "form" has saved me. Montt smiles over the bodies of his eight thousand victims. [The reference is to the Chilean Liberal revolt of 1851, crushed by the administration of President Montt with a heavy loss of life.]

"The press is free." But I name the jury, and, backed by the authority of that free institution, I can accuse, harass, persecute; I can silence free speech. Then there reigns, absolute and sovereign, the opinion of one party. I spread the shroud of infamy over the corpse of the vanquished and cry: "The press is free!" All liberal publicists, it can be said, accept the doctrine of "the separation of powers," as indispensable for the safety of the Republic.

But if the Executive has the power to name the judges; if the Executive participates in the framing of the laws; if the Executive can use the electoral law to name the members of Congress, what remains, in the last analysis, of the famous separation of powers?

"The guarantees established by this constitution cannot be suspended. But if I have the power to declare a province or the Republic in a state of siege, authorized to do so, as in Chile, by a 'Council of State' appointed by the President, what security can a citizen have?"

This miserable Machiavellianism has "preserved the forms" at the cost of plunging Chile into bloodshed and reaction for a space of thirty years.

There is discussion, the press is free; citizens come together, for they have the right of assembly; an enlightened public opinion almost unanimously clamors for reforms; preparations are made for elections that will bring to power representatives of the reform movement; and then the Executive Power declares the province or the Republic in a state of siege, and the suspended guarantees soar over the abyss of "legal" dictatorship and constitutional despotism!

And then? Either resignation or despair, or civil war, etc., etc. Then revolution raises its terrible banner, and blood flows in battles and on scaffolds. Respect for law and authority is lost, and only force holds sway, proclaiming its triumph to be that of liberty and justice. . . .

We have seen that our republican constitutions bear in themselves the germ of "legal despotism," a monstrous association of words that well describes the prostitution of the law. And since despotism, being "legal," is vindicated, the result is that the sentiment of justice is erased from the consciences of men.

Its place is taken by sophistry, duplicity, and intrigue, used to win power at all cost, for power legitimizes everything. . . .

Experience proves that in the legal combat of the parties the party in power always gains the victory. Experience shows that the party that conducts itself loyally is swindled and routed. What can be the result of this state of affairs? That justice is forgotten, and success becomes justice. To win, then, is the supreme desideratum.

Then the debased conscience alters even the countenances of men, and their words, in the expression of Talleyrand, serve only "to mask their thought."

Then chaos emerges. Words change their meaning, the tongues of men become as twisted as serpents, their speech grows pompous and hollow; the language of the press is like the tinsel thrown on a grave to adorn "a feast of worms," and the prostitution of the word crowns the evolution of the lie.

The conservative calls himself a progressive.

The liberal protests that he is a loyal Catholic.

The Catholic swears by liberty.

The democrat invokes dictatorship, like the rebels in the United States, and defends slavery.

The reactionary asserts that he wants reform.

The educated man proclaims the doctrine that "all is for the best in the best of all possible worlds."

The "civilized man" demands the extermination of the Indians or of the gauchos. [An ironic reference to D. F. Sarmiento's book, *Civilization and Barbarism, The Life of Juan Facundo Quiroga*.]

The "man of principles" demands that principles yield to the principle of the public good. There is proclaimed, not the sovereignty of justice, presiding

over the sovereignty of the people, but the sovereignty of "the end"—which legitimizes every "means."

The absolutist proclaims himself the savior of society.

And if it governs with *coups d'état*, states of siege, or permanent or transitory dictatorships, while the constitutional guarantees are flouted, mocked, or suppressed, the party in power will tell you: civilization has triumphed over barbarism, authority over anarchy, virtue over crime, truth over the lie. . . .

We have behind us a half century of independence from Spain. How many years of true liberty have any of the new nations enjoyed?

That is difficult to say; it is easier to reckon the years of anarchy and despotism that they have endured.

Shall Paraguay be the "model" with its forty years of dictatorship?

Or shall it be the Argentine Republic, with its provincial and national dictatorships, culminating in the twenty-year tyranny of Rosas?

And who knows what is to come?

Shall it be Chile, beginning with the dictatorship of O'Higgins and continuing with an intermittent dictatorship of thirty consecutive years?

Shall it be Bolivia, with its terrifying succession of sanguinary dictatorships?

Shall it be Peru, which has had more dictators than legal presidents?

Shall it be Ecuador, with its twenty years of the dictatorship of Flores?

Shall it be New Granada? And there one almost finds the exception, but Obando, the liberal-legal president, was "overthrown for being a dictator."

Shall it be Venezuela, with its twenty years of Monagas?

Shall it be the little republics of Central America, and even Mexico? But this will suffice.

And these dictatorships have proclaimed all the principles.

The *pelucones*, [or "bigwigs," the nickname given to Chilean conservatives by their liberal opponents in the period after the winning of independence] the conservatives, the reds, the liberals, the democrats, the Unitarians, the Federalists, all have embraced dictatorship. With the best of intentions the parties genially proclaim: "dictatorship in order to do good."

That is to say: despotism in order to secure liberty.

Terrible and logical contradiction!

5. FACUNDO: BARBARIAN CAUDILLO

The caudillo appeared in many guises. A common type in the first period after independence was the barbarian chieftain, whose rule represented dictatorship in its crudest, most lawless form. A specimen of this breed was Juan Facundo Quiroga, master

under Juan Manuel Rosas of the Argentine province of San Juan and the terrible hero of a memorable book by Domingo Faustine Sarmiento (1811-1888).

Facundo, as he was long called in the interior, or General Don Facundo Quiroga, as he afterwards became, when society had received him into its bosom and victory had crowned him with laurels, was a stoutly built man of low stature, whose short neck and broad shoulders supported a well-shaped head, covered with a profusion of black and closely curling hair. His somewhat oval face was half buried in this mass of hair and an equally thick black, curly beard, rising to his cheek-bones, which by their prominence evinced a firm and tenacious will. His black and fiery eyes, shadowed by thick eyebrows, occasioned an involuntary sense of terror in those on whom they chanced to fall, for Facundo's glance was never direct, whether from habit or intention. With the design of making himself always formidable, he always kept his head bent down, to look at one from under his eyebrows, like the Ali Pacha of Monovosin. The image of Quiroga is recalled to me by the Cain represented by the famous Ravel troupe, setting aside the artistic and statuesque attitudes, which do not correspond to his. To conclude, his features were regular, and the pale olive of his complexion harmonized well with the dense shadows which surrounded it.

The formation of his head showed, not withstanding this shaggy covering, the peculiar organization of a man born to rule. . . . Such natures develop according to the society in which they originate, and are either noble leaders who hold the highest place in history, ever forwarding the progress of civilization, or the cruel and vicious tyrants who become the scourges of their race and time.

Facundo Quiroga was the son of an inhabitant of San Juan, who had settled in the Llanos of Lo Rioja, and there had acquired a fortune in pastoral pursuits. In 1779, Facundo was sent to his father's native province to receive the limited education, consisting only of the arts of reading and writing, which he could acquire in its schools. After a man has come to employ the hundred trumpets of fame with the noise of his deeds, curiosity or the spirit of investigation is carried to such an extent as to scent out the insignificant history of the child, in order to connect it with the biography of the hero: and it is not seldom that the rudiments of the traits characteristic of the historical personage are met amid fables invented by flattery. . . .

Many anecdotes are now in circulation relating to Facundo, many of which reveal his true nature. In the house where he lodged, he could never be induced to take his seat at the family table; in school he was haughty,

D. F. Sarmiento, *Life in the Argentine Republic in the Days of the Tyrants: Or Civilization and Barbarism*, translated by Mrs. Horace Mann (New York, 1868), pp. 76-90.